

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 14, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against REALE SEGUROS GENERALES, S.A. (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that during the processing of a claim at the request of REALE SEGUROS GENERALES, S.A., a medical expert assessment was conducted on November 22, 2023.

The complainant states that on February 15, 2024, they exercised the right of access to the content of the medical expert report against the respondent, receiving a response on February 28, 2024, in which access to the report was denied on the grounds that it is an internal document, only mentioning the data contained in their diagnosis.

The complainant alleges dissatisfaction with the response received regarding the exercise of their right of access, while the respondent has not informed them of their right to file a complaint with the supervisory authority.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on June 13, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing period, so that within fifteen working days they could present any arguments they deemed appropriate, summarizing, in essence, the following arguments:

The respondent argues that the request has already been duly addressed and satisfied without this party being obliged to do so. Reale responded (interpreting it in favor of the requester), in a timely manner on February 28, 2024, providing the medical results of the Medical Report.

They state that providing the complete report would harm the rights of third parties.

A very relevant part of the Medical Report consists of content prepared by healthcare professionals (emergency reports, trauma consultations, etc.). These professionals are not part of the present procedure before the AEPD and, therefore, have not had the opportunity to argue what they deem appropriate regarding the disclosure of the content to the requester.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that within fifteen working days they can formulate any arguments they consider appropriate, summarizing, in essence, the following arguments:

“...That in light of the generality of the allegations submitted by Reale Seguros Generales (hereinafter Reale), I hereby reproduce my complaint submitted to this Agency on 14-03-2024 in its entirety along with its attached documents as evidence and basis, and I consider its careful reading relevant as it precisely and specifically reasons and motivates what, what, and on what basis is being requested.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

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In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to provide evidence of having given the complainant the appropriate response.

The outcome of this forwarding did not allow for the satisfaction of the claims of the complainant.

Consequently, on June 13, 2024, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD.

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considering the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as

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information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

During the processing of this procedure, the entity being claimed against has responded to this Agency, denying the right to full access to the expert medical report, although it should be emphasized that the insurer responded on February 28, 2024, to the access request submitted by the claimant on February 15, 2024, where it denies access to the expert medical report and provides a description of the claimant's medical diagnosis.

However, the entity being claimed against informs that on April 29, 2024, it justified to the AEPD that the delivery of the complete Medical Report was not carried out as it could collide with the rights of third parties. Furthermore, Reale justified that the General Data Protection Regulation ("GDPR") did not impose the obligation to provide a copy of documents, but rather a copy of personal data.

In this regard, consideration must be given to the Judgment of the Court of Justice of the European Union of May 4, 2023, in case C-487/21, which states that Article 15, paragraph 3, first sentence of the GDPR must be interpreted to mean that "the right to obtain from the data controller a copy of the personal data being processed implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the delivery of such a copy is essential to allow the data subject to effectively exercise the rights conferred on them by that Regulation."

Consequently, entire documents or extracts from documents containing the personal data concerning the interested parties may be provided. In the case at hand, the right of access has been fulfilled incompletely, therefore the claim lodged must be upheld.

In view of the cited provisions and other generally applicable provisions, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge REALE SEGUROS GENERALES, S.A. with NIF A78520293, to send to the claiming party, within ten working days following the notification of this resolution, a certification that addresses the requested right, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to REALE SEGUROS GENERALES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

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